

IV ①Justice Anthony Kennedy wrote that the previous decisions were **flawed**^①. ②“Each year the physical presence rule becomes further removed from economic reality and results in **significant**^② revenue losses to the states,” he wrote in an opinion joined by four other justices. ③Kennedy wrote that the rule “limited states’ ability to seek long-term prosperity and has prevented market participants from competing on an even playing field.”

大法官安东尼·肯尼迪写道,此前的裁定有疏漏之处。他连同其他四位大法官在意见书中写道,“实体存在规则每年都愈发脱离经济现实,使各州蒙受巨额收入损失。”肯尼迪还写道,这项规则“限制了各州寻求长久繁荣的能力,使市场参与者无法在公平的环境下展开竞争。”

• 词汇注释与难句分析 •

① **flawed** [flɔ:d] a. 有错误的,有缺点的

② **significant** [sɪg'nɪfɪkənt] a. 相当数量的,影响明显的

③ **hinder** ['hɪndə] v. 阻碍,妨碍(38题)

● 经典搭配

① be far/further/furthest removed from (与……大相迥庭)

② long-term prosperity (长期繁荣)

③ an even/level playing field (公平的竞争环境)

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句子主干:

Kennedy	wrote
主语	谓语

← 宾语从句

that	the rule	“limited	states’ ability	to seek long-term prosperity
引导词	主语	谓语1	宾语1	后置定语
and	has prevented	market participants	from competing on an even playing field.”	
连词	谓语2	宾语2	宾语补足语	

功能注释:本句主干为 Kennedy wrote that..., 宾语部分为 that 引导的宾语从句。宾语从句中, and 连接两个谓语结构,对从句主语 the rule 的影响进行说明。

• 语篇分析 •

第四段借大法官的权威分析指出原裁定的疏漏之处,亦即推翻旧裁定、做出新裁定的必要性。关键词为: **flawed**。

①句概述肯尼迪大法官的观点:原裁定有疏漏之处。flawed (意为 spoiled by having mistakes or weaknesses “有错误的,有缺点的”)是肯尼迪大法官对原裁定一针见血的评价,这既呼应了上文所分析的原裁定的不利影响(即推翻原裁定的必要性),又预示下文将对其缺陷展开具体阐述。

②③句具体说明原裁定的疏漏之处。两句间借 the physical presence rule... the rule... 形成的回指展开对原裁定中实体存在规则缺陷的具体分析。

②句指出原裁定的本质问题:脱离现实。further removed from economic reality 表明“原裁定严重脱离现实”,再辅以 Each year 体现出这种情况仍在逐年加剧,从而说明当前调整税收规则的必要性; economic reality 则指当前“在线贸易繁荣”这一现实:即便企业并未在一州设立实体存在,也能与该州发生大量交易,从而建立“实质性联结”;亦即,在当前环境下,实体存在已不再是“实质性联结”的必要条件。significant revenue losses 借大法官之言呼应了第二段①句中州政府的说辞:实体存在规则严重损害各州利益(cost them billions of dollars in lost revenue annually)。results in 则明确了“原裁定脱离现实”与“各州利益受损”两者之间的因果逻辑关系。注:joined by four other justices 指其他4位同意推翻原裁定的大法官(美国最高法院共设9名大法官,本次裁定的表决结果为5比4)。

③句指出原裁定的不良影响:影响各州长远发展、破坏市场竞争。limited states’ ability to seek long-term prosperity 近义复现上句中的 significant revenue losses to the States 但不完全相同:一方面,销售税漏收现象影响各州财政收入;另一方面,原裁定变相鼓励商家避免在多州设立实体存在,而这些实体存